

Amendment No. 1 to HB0658

Terry
Signature of Sponsor

AMEND Senate Bill No. 502*

House Bill No. 658

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-24-101, is amended by deleting the section and substituting:

As used in this chapter:

(1) "Athletic injury" means any injury sustained by a person as a result of such person's participation in exercises, sports, games, or recreation requiring physical strength, agility, flexibility, range of motion, speed, or stamina, or comparable athletic injury that prevents such person from participating in such activities;

(2) "Athletic trainer" means a healthcare provider with the qualifications prescribed in this chapter who, upon the advice, consent, and oral or written prescriptions or referrals of a physician licensed under this title, carries out the practice of prevention, recognition, evaluation, management, disposition, treatment, or rehabilitation of athletic injuries, and, in carrying out such functions, is authorized to use physical modalities, such as heat, light, sound, cold, electricity, or mechanical or therapeutic devices, and healthcare procedures related to prevention, recognition, evaluation, management, disposition, rehabilitation, and treatment;

(3) "Board" means the board of athletic trainers;

(4) "Board of certification" or "BOC":

(A) Means the Board of Certification for the Athletic Trainer, Inc.;
and

(B) Includes any predecessor entity of the Board of Certification
for the Athletic Trainer, Inc.; and

(5) "Healthcare procedure":

(A) Means a course of action intended to achieve a result in the
delivery of health care; and

(B) Includes:

(i) Rectal core thermometer administration in an emergent
situation;

(ii) Blood glucose monitoring;

(iii) Wound closure that is limited to the closure of a
superficial laceration using a dermal adhesive pursuant to a
written or oral standing order from a physician;

(iv) Subcutaneous or intramuscular injection
administration that is limited to the following medications, which
may only be obtained, transported, provided, or administered
when providing athletic training services and pursuant to the
approval of and guidelines established by a supervising physician:

(a) Epinephrine 1:1000, in liquid medication form
or in an auto-injector device, for treatment of anaphylaxis;

(b) Naloxone, for treatment of drug overdose;

(c) Glucagon, for treatment of diabetic emergency;

and

(d) Flu vaccine, for administration to a person nine
(9) years of age or older;

(v) Intravenous injection administration when done with proper training and education, which must include a minimum of four (4) continuing education hours or coursework from a degree program showing education and understanding of intravenous administration, that is limited to the following medications, which may only be obtained, transported, provided, or administered when providing athletic training services and pursuant to the approval of and guidelines established by a supervising physician:

(a) For use in a diabetic emergency, dextrose fifty percent (50%) and dextrose twenty-five percent (25%); and

(b) For use in fluid administration, saline solution and lactated Ringer's solution.

SECTION 2. Tennessee Code Annotated, Section 63-24-103, is amended by deleting the section and substituting:

(a) A person shall not represent themselves or claim to be an athletic trainer or perform any of the activities of an athletic trainer without first obtaining a license under this chapter.

(b) This chapter does not prevent a person from serving as an athletic training student or a similar position if such service is not primarily for compensation and is carried out under the supervision of a licensed athletic trainer and physician licensed under this title. Such supervision must be provided under the guidelines of the board of certification and approved by the board.

SECTION 3. Tennessee Code Annotated, Section 63-24-104(a)(2), is amended by deleting the subdivision and substituting:

(2) Satisfactorily completed all of the board of certification qualifications and be certified as an athletic trainer in good standing by the BOC and approved by the board.

SECTION 4. Tennessee Code Annotated, Section 63-24-104(b), is amended by deleting the language:

An out of state applicant from a state not having a licensure or certification act will be eligible to take the jurisprudence examination if certified by the NATA Board of Certification, Inc., and approved by the board.

and substituting:

An out-of-state applicant from a state not having a current licensure or certification act or an expired license or certificate in good standing at time of expiration will be eligible to take the jurisprudence examination if certified by the board of certification and approved by the board.

SECTION 5. Tennessee Code Annotated, Section 63-24-105(a)(2), is amended by deleting the subdivision and substituting:

(2) The applicant is entitled to an athletic trainer's license if the applicant:

(A) Possesses the qualifications enumerated in § 63-24-104;

(B) Completes and passes the certification requirements and examination of the board of certification or its equivalent as determined by the board;

(C) Completes the jurisprudence examination administered and selected by the board, to the board's satisfaction;

(D) Pays the licensure fee as prescribed in § 63-24-106; and

(E) Has not committed an act that constitutes grounds for denial of a license under § 63-24-107.

SECTION 6. Tennessee Code Annotated, Title 63, Chapter 24, Part 1, is amended by adding the following as a new section:

This chapter does not, and shall not be construed to, authorize an athletic trainer to engage in the practice of medicine, osteopathic medicine, podiatry, chiropractic, physical therapy, or nursing.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.